



**THE POLICE COMMISSIONER
CITY OF NEW YORK**

**MEMORANDUM IN SUPPORT OF NYPD'S DEVIATION FROM
THE DISCIPLINARY SYSTEM PENALTY GUIDELINES**

Re: Disciplinary Case No. 2024-30307 / PODS Case No. C-031152 regarding
Sergeant James Elliott, Tax No. 951710

Date: March 30, 2026

This disciplinary matter was investigated by the Civilian Complaint Review Board ("CCRB") which involved allegations that Sergeant Elliot stopped an individual without sufficient legal authority, was discourteous to the individual, and issued an unlawful summons to the individual without sufficient legal authority. CCRB has determined that a downward deviation from the Disciplinary System Penalty Guidelines is warranted.

I concur with the downward deviation for the reasons articulated by CCRB in the attached correspondence.

Therefore, the Charges and Specifications in this matter will be dismissed and Sergeant Elliot will receive Training, as negotiated by CCRB.


Jessica S. Tisch
Police Commissioner



ERIC L. ADAMS
MAYOR

CIVILIAN COMPLAINT REVIEW BOARD
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Dr. MOHAMMAD KHALID
INTERIM CHAIR

September 3, 2025

The Honorable Jessica S. Tisch
Police Commissioner
New York City Police Department
One Police Plaza
New York, NY 10038
VIA EMAIL

Re: *CCRB v. Sgt. James Elliott (CCRB Case no. 20208102, DADs No. 2024-30307, Tax No. 951710)*

Commissioner Tisch:

A negotiated settlement of a dismissal of the charge along with Department Imposed Training was agreed upon and signed by all the parties on July 25, 2025. Assistant Deputy Commissioner-Trials, Anne Stone endorsed the negotiated settlement on August 21, 2025. This is a downward deviation from the NYPD's Disciplinary Matrix. CCRB offered this disposition for the following reasons:

1. Sgt. Elliott agreed to take responsibility for his misconduct.
2. While serving at the 75 PCT, Sgt. Elliott received recognition for Excellent Police Duty nineteen times and Meritorious Police Duty eight times.
3. Sgt. Elliott has also been a member of service for thirteen years.
4. Sgt. Elliott's Commanding Officers rates Sgt. Elliott's overall performance above average.
5. The duration of the encounter was brief.
6. CCRB believes there is great potential for training to correct/rehabilitate the behavior.

Respectfully submitted,

Andre D. Applewhite
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Chief Prosecutor
NYC Civilian Complaint Review Board

Cc: John D'Allesandro, Esq.